REPORTABLE (34)

TONDERAI WAYNE CHINGWENA
v
THANDEKA NTOMBIFUTHI MLAMBO

SUPREME COURT OF ZIMBABWE
MATHONSI JA, MWAYERA JA & MAFUSIRE AJA
HARARE: 27 MARCH 2026 & 28 MAY 2026

T. Mpofu, for the appellant

H. Nkomo, for the respondent

MATHONSI JA: The parties are the biological parents of two minor children, a sixteen-year old boy and a nine-year old girl born outside wedlock but during the subsistence of an on and off relationship between them. The Children's Court granted the respondent custody of the minor children while affording access rights to the appellant but the parties have continued to litigate over the appellant's rights of access culminating in the High Court (the court *a quo*), sitting as an appellate court, delivering judgment in favour of the respondent on 27 August 2025. It is that judgment of the court *a quo* which is the subject of the present appeal.

The Court holds that the court *a quo* is the upper guardian of all minor children by legislative decree and when dealing with any matter involving minor children it is guided by the best interests of the minor children. In discharging its mandate, the court *a quo* should not allow itself to be misled by appearances given to it by the parties. Its remit is to use its own experiences and sense of fairness to determine the dispute in the best interests of the children and not the selfish interests of the parents. Where there is evidence of the possibility of the best interests of the

children being compromised, or the children being exposed to harm, the court *a quo* is required to act decisively to protect those interests and to ensure the safety of the children in question.

The Court holds that there was evidence placed before the Children's Court to the effect that the appellant exposed the sixteen-year old child to harmful substances which evidence was not adequately controverted by the appellant. On the basis of that, the court *a quo* acted within its legislative responsibility as upper guardian of minor children in upholding the appeal against the judgment of the lower court and directing that the appellant's access to the minor children be a supervised one.

More specifically, the Court holds that in extending the order for supervised access to the nine year old daughter of the parties, the court *a quo* was properly discharging its mandate as upper guardian of the minor children given that the same harmful exposure applied equally to the girl.

The Court further holds that there is no basis whatsoever in our civil practice and procedure, as well as in our law generally, for the incorporation of the contempt of court proceedings brought by the appellant against the respondent in the present proceedings. This is more so given that it is a celebrated principle of our law that an appeal, both in the court *a quo* and this Court, is determined on the four corners of the appeal record except where an application has been made and granted for a party to adduce further evidence on appeal.

Given that the appellant did not seek *a quo* to lead evidence to rebut the evidence against him sitting in the court record and on the contempt of court proceedings, the court *a quo*

cannot be faulted for upholding the appeal before it. The present appeal has no merit and is susceptible to being dismissed with costs.

THE FACTS

The parties met at high school and sired a child, a boy born on 6 June 2009. The appellant proceeded to Australia to pursue his studies a few months later. They later met again at Monash University in South Africa where both were enrolled to study but independent of each other. In 2016 they sired the second child, a girl born on 19 July 2016 at which point respondent moved in with the appellant's parents while he was not residing there but was further studying in Malaysia.

In 2018, she and the children moved out of his parents' home to live in rented accommodation in Highlands, Harare. At some stage he paid damages to her parents which are normally associated with an admission by a man to causing the pregnancy of a girl. He never paid lobola and therefore there was no customary union. Whatever the case, they had a working arrangement over visitation rights and maintenance of the minor children, their relationship having ended in 2018.

The arrangement however did not stop the respondent from approaching the Children's Court in November 2023, under CCC 11075/23, with an application for sole custody of the minor children. The application was made in terms of s 5 (e) and (a) of the Guardianship of Minors Act [*Chapter 5.08*]. While not in any way impugning the appellant's suitability as a parent, the respondent stated in her founding affidavit that she was bringing the application in order to "assert her rights as the custodian parent and that the appellant's access to the children needs to be properly agreed to."

The appellant opposed the application alleging the existence of an arrangement between the parties for what he called joint custody of the minor children. In his view, there was no basis for abandoning the arrangement. The respondent vehemently denied the existence of a joint custody arrangement. Significantly, in her answering affidavit the respondent did not attempt to cast the appellant in a bad light. She stated at para 19 thereof:

> "19. In my application I have not alleged any facts that disqualify the respondent as a suitable joint custodian parent because this application's purpose is not meant to portray the respondent in a negative light. We are both parents to the minor children and I respect the respondent's role as the minor children's father. This application's purpose however is not to determine the suitability of the respondent as a joint custodian, I simply want through this application to ascertain (sic) my rights as sole custodian to the minor children which has always been the case ever since the children were born. It is unfortunate that the respondent is also inconsistent in his involvement in our minor children's lives. He is further not reliable when it comes to issues that pertain to them leaving me as the only stability that they know. The order I am seeking will maintain that stability the minor children currently have with the current arrangement we have now of sole custody."

I must mention for now that the respondent's positive view and regard of the appellant was later to change. Be that as it may, on 14 December 2023 the Children's Court granted the respondent the relief that she sought, albeit with minor amendments. On its way to doing so, it reasoned thus:

> "It is the court's finding that in terms of s 5 (2) (a) (of the Guardianship of Minors Act [*Chapter 5:08*]) that the applicant has approached this Court, it cannot declare the applicant as the sole custodian as the circumstances are not the same.
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> The applicant has not shown that the children have been removed from her. The applicant is already staying with the minor children and as such that section does not apply in the circumstances. It therefore follows that this Court cannot award sole custody, it is the court's view that same cannot apply in the present circumstances wherein parties are living apart. It would apply if parties are staying together as husband and wife.
>
> It therefore follows that the only issue to be dealt with by the court was that of access. The applicant is the custodian parent. The respondent has a right to access his children. In

arriving at the decision the court took into account the best interests of the minor children which is the guiding principle in matters of this nature.
It is in the best interests of the minor children that they access their father as they also have a right to that. It is hereby ordered as follows:

1. The applicant is awarded custody of 2 minor children namely Mandla Sizwe Chingwena born on 6 June 2009 and Naledi Aliah Chingwena born on 19 July 2016.

2. The respondent is granted access to the minor children on alternate weekends, the respondent to collect the children on Fridays from school and drop them at school on Mondays.

3. In addition, the respondent to access the minor children during the first or last two weeks of every school holiday.

4. The applicant is directed not to remove the minor children outside the jurisdiction of the country without the consent of the respondent."

I mention in passing that para 4 of the order was unsolicited. The respondent noted an appeal to the court *a quo* against the custody and access judgment under case number HCH 8309/23 which appeal was essentially directed against the unsolicited order of access and prohibition against removing the children from the jurisdiction of the court. It is not clear from the record what became of that appeal or whether it was ever prosecuted.

What is clear however, is that after the appeal was filed, on 7 November 2024, almost a year after the filing of that earlier appeal, the appellant filed an application for leave to execute the custody and access judgment pending appeal. The basis of the application was that the respondent was denying him access to the minor children in terms of the court order presumably relying on the suspension of the judgment by the noting of the appeal.

Although the respondent opposed the application, the Children's Court granted it by judgment delivered on 9 December 2024 in which it drew the following conclusion:

"In *casu* the applicant stated that they applied for sole custody and the court granted the custody which it had not requested for and that forms part of their appeal points. This Court is of the view that a biological parent is denied access on rare occasions due to the need to bond and nurture the children. The appeal has no good prospects of success. The Magistrates' Court has jurisdiction for custody and not sole custody. The balance of convenience favours the granting of application. More so considering that the same appeal was removed from the roll and the non-custodian parent loses everything by such an arrangement.

The application for leave to execute pending appeal is granted as prayed for. Costs on an ordinary scale."

THE APPLICATION FOR VARIATION

With that leg of the dispute between the parties having been accounted for, the second leg was about to commence. In January 2025, the respondent again approached the Children's Court in terms of s 5 (8) of the Guardianship of Minors Act [*Chapter 5:08*] for an order of variation of the order of custody and access to the minor children.

The gist of the respondent's complaint appears at paras 6 to 14 of her founding affidavit where she stated:

"6. There are unfortunate developments that have ensued subsequent to the court's order above. The facts relevant to those developments are already on record before this Court in the respondent's application for leave to execute the above order pending my abortive appeal to the High Court. I annex that record marked 'B'.

7. As stated in my opposing papers in that matter, I have discovered that the respondent has exposed our son to illegal substances and or facilitated, condoned or enabled his consumption thereof. I have video evidence of the child engaging in 'vaping' which involved him in the action or practice of inhaling and exhaling vapour containing nicotine and flavouring that is produced by a device designed for this purpose. According to the child, the respondent bought this device for him. The child also mentioned that the incident captured in the video is not his first. He indicated that the respondent invariably requires the child to partake with him or in his presence. The child said this has been the case for some time now.

8. It is common cause between the parties that the respondent has a history with drugs. Whilst I have been given to believe that he had turned a new page, this shocking discovery has got me seriously concerned. I do not think it is in the child's best interests

to allow the (respondent) absolute unsupervised access to the child in such circumstances. As the record shows, this issue has been put to him and his lawyers before in the two letters attached to my opposing papers. I made full disclosure of my reservations over his suitability to be with the child and did not hide my reasons from him.

9. Whilst in his letter of response and at the meeting of 29 October 2024, the respondent denied these allegations, such denials could not change anything because it was his word against the child's. Beyond that, his denials worsen the situation because it leaves the child's conduct unaccounted for. What is clear is that the child engages in this conduct when he goes to the respondent's place and during the periods they are together. It implicates the respondent in dereliction of his role to supervise and protect the child during those periods. So the respondent's denials do not change anything.

10. I submit under the circumstances that it would be remiss of me or the court to allow the respondent unsupervised access to the child whilst this disturbing issue remains unaccounted for. It is surprising and worrying that despite being made aware of this development, the respondent has never stated anything either on record or elsewhere which shows that he is concerned about the child's welfare in respect of this dangerous development….
11. …

12. To the extent that the respondent feigns ignorance and indifference, I ask the court to conduct an inquiry into the issue during which process it will view the video evidence and interview the child. I do not think the child is seeing shadows or otherwise delusional. But even if he is, there ought to be an inquiry into why he is only delusional when it comes to the respondent and not everyone else.

13. But matters get worse. As the email thread shows, I have raised issue with our daughter during her stay with the respondent. She is a girl child who is only 9 years old. She is vulnerable and requires the attention of a female adult at all times whether at home or school.

14. The respondent obviously and naturally knows this. And yet during his stay with the child, he does not make arrangements to provide this kind of care for our daughter. When she returns from the respondent, she comes back unbathed and unkempt. It is clear that there is no system in place to attend to her needs. The result is that her welfare and health are not guaranteed and in fact, disregarded."

Having said that, the respondent sought a revision of the court order for custody and access to provide for supervised access to the children by the appellant. She also sought the removal of the provision restricting her foreign travel with the children.

The appellant strongly opposed the application. His response to the above allegations made by the respondent appears at paras 12 to 29 of his opposing affidavit, the pertinent parts of which are reproduced below. He stated:

"**Ad para 6-7.**

12. I categorically deny the allegations leveled against me in these paragraphs. The applicant has unfortunately tried to use such an unfortunate incident to push her vindictive agenda against me, as opposed to resolving it in the best interest of our son. It is pertinent that I give the court the background to this issue.

13. This issue was first brought to my attention in October 2024 after the applicant denied me access to my children, a letter dated 14 October 2024, a copy of which is attached hereto marked as 'Annexure 02" was sent to the applicant's legal practitioners after she had denied me access despite an extant court order.

14. In response, the applicant raised this issue by way of a letter dated 14 October 2024, a copy of which is attached hereto marked as 'Annexure 03'. It will be noted that the letter was already accusatory and made it clear that my access to my children had been unilaterally withdrawn notwithstanding an extant order granting me same.

15. On 29 October 2024, a meeting was held at Atherstone & Cook Legal Practitioners to discuss this issue. A summary of what transpired at the meeting is captured in a letter dated 31 October 2024 sent to the applicant by my lawyers, a copy of which letter is attached hereto marked as 'Annexure 04'. The letter highlights the following pertinent points:

    15.1. That the video in question was never shared prior to the meeting, however, at the meeting, when the video was shown to everyone present, it was established that the 'vaping' took place at the applicant's residence at (*sic*) not at my house.

    15.2. That I suggested that immediate disciplinary action be taken against our son, including the immediate withdrawal of privileges, such as his cellphone, and that he be grounded. The applicant however refused to implement my suggestions on the basis that our son was 'telling the truth' and therefore should not be punished.

    15.3. That I suggested that we speak to our son together and put forward a united front in a bid to deal with the issue. The applicant refused to take this route.

    15.4. Lastly, it will be noted that I also suggested that our son's grandfathers, being my father and the applicant's father should speak to our son. This again was declined by the applicant.

16. …

17. The applicant has deliberately kept this issue alive without a genuine attempt at resolving it. She has blocked suggestions that could have resolved the matter and denied me access to my children on facts that she herself alleged heard from our son, the objective interrogation of which facts which has blocked (*sic*). She even went as far as denying access to my children from October 2024, until January 2025 when her appeal to the High Court was struck off the role (*sic*).

18. The fact that the present application is not borne by what is in the interest of the children from the fact that although this issue arose as far back as October 2024, the applicant has not taken any action to have it resolved. Instead, she is simply used it (*sic*) as a justification for being in contempt of court by denying me access.

19. …

20. …

Ad para 8.

21. I take great exception to the content of this paragraph and the insinuation contained therein. I confirm that I used to partake in 'vaping', which chemical makeup is like that of smoking a cigarette. I am also aware that the applicant also used to/or currently partakes in 'vaping' as we used to do it together.

22. The suggestion that I am a hazard to our son because I do something that the applicant herself does is ridiculous, malicious and shows that the applicant is more worried in blaming me than addressing the actual issue.

Ad paras 9-12

23. The contents of these paragraphs show that the applicant is willing to commit perjury and mislead the court for the sole purpose of denying me access to my children and developing a relationship with them. In para 9, the applicant alleges that the 'vaping' takes place at my house and yet in the video, this was being done at her house. The applicant has deliberately shied away from dealing with this fact and continues to focus her time, attention and resources and accusing me.

24. I deny the allegation that I have not shown concern about this issue. As stated above, I made several suggestions on how the issue should be dealt with, and the applicant declined to accept my suggestions. In addition, I also highlight that since the incident was brought up, the applicant barred me from seeing my children from October 2024, until the end of January 2025. I am not sure how the applicant expected me to implement measures to stop it from happening, or to investigate the matter when it never happened at my house and without having access to my children.

25. …

Ad paras 13-15.

26. It is denied that I do not make arrangements for our daughter. Firstly, our daughter is nine (9) years old and can bath herself. The applicant speaks as if we are dealing with a toddler.

27. At the age that our daughter is, she can bath herself and merely requires some supervision. I can confirm that I have a full time female maid at my house who supervises my daughter in that regard.

28. In addition to this, I also advise that I live close to my parents' house where we spend most Sundays so that our children can have a relationship with their grandparents. My mother and sister will therefore be available to supervise my daughter during those periods.

29. I therefore advise that I have put in place suffice (*sic*) mechanisms (*sic*) the welfare of my daughter. Allegations that she is 'unkept' when she comes to my house, although denied, do no put my daughter in harm's way in any way that would warrant the variation of the court order."

At the hearing of the application for variation of the custody and access order, the court was urged to interview the then 15-year-old boy regarding the allegations that the appellant exposed him to drugs. The learned magistrate recorded the interview conducted with the boy. The dialogue after the child was admonished went like this:

"Q. How old are you?

A. 15 years old.

Q. Where do you stay?

A. In the Avenues with my mother.

Q. How often do you see your father?

A. 2 times a month on weekends from Saturdays to Sundays.

Q. What happens when you go to your father?

A. We go for lunch or stay at home.

Q. Did he ever give you drugs?

A. Not anymore but he gave me in August 2024 three times.

Q. What type of drugs?

A. Vape. I told my mother.

Q. Would you want him to have supervised access that your mother has applied for?

A. I do not mind.

Q. Who else stays with your father?

A. He has 3 rooms. He stays with his maid.

Q. Are you aware if your father does drugs?

A. I am not aware but he has since stopped giving me drugs. I do not know what my mother told him but I reported to my mother when he gave me the drugs.

Q. Do you have any siblings?

A. I have my sister who is 13 years old.

Q. Was she given drugs as well on the day?

A. No she was not.

No further questions."

This piece of evidence given by the boy was not rebutted. The appellant's counsel only requested to have the evidence for the purpose of preparing heads of argument. Significantly, the appellant did not object to the interview of the child by the court. Neither did he seek leave to rebut the allegations made against him by his son. He only sought to discredit his son's evidence in heads of argument filed in the Children's Court.

Although preliminary objections were raised by the appellant regarding what he regarded as "dirty hands" on the part of the respondent suggesting that she should not be heard,

the court refused to be drawn into determining the matter on technicalities. It elected to deal with it on the merits. In a judgment delivered on 11 March 2025, the court ruled:

> "On the merits the court interviewed the eldest child, he confirmed that his father gave him drugs in August 2024, three times. He specified that he was only given vape and he told his mother and the incident never happened again. Counsel for the respondent is alleging that the applicant coached this child but the court is satisfied that if that was indeed the case that the child could have simply lied that his father kept on numerous occasions.
>
> The child however stated that the incident only happened in August 2024 and it has been alleged that the applicant herself does vaping and she did not dispute it. The court has interpreted that to mean the applicant admits that she does vaping as well. In the circumstances, it would not make sense for the applicant to seek supervised access on the basis that the respondent is into vaping yet she has not disputed that she does the same.
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> The court is in agreement with the case cited of *Boltger* v *Boltger* HCH 405/22 which stated the objective of access is to nurture the affection and companionship relationship between non-custodian parent and the child. And while on the one hand is (*sic*) should not be of such frequency as to trespass on the control and direction of the child's life that is vested in the custodian parent on the other hand it should not be so confined as to stultify the continuing link between child and non-custodian parent.
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> The applicant already has custody of both children and the respondent also deserves to bond with the children without disturbances.
>
> It has not been proven that it will be in the best interests of the children to grant the current application. Accordingly,
>
> The application is dismissed with no order as to costs."

THE APPEAL TO THE COURT *A QUO*

The respondent was disgruntled by that turn of events. She noted an appeal to the court *a quo* on the following five grounds of appeal:

> "1. Having found that the allegation of vaping of illicit substances around the child requires an inquiry and having so conducted it in respect of respondent, the court *a quo* erred in making definitive findings of that conduct in respect of the appellant without a similar

inquiry towards her and so erred in subjecting her to a standard which is contrary to the inquisitive procedure which it had adopted in the same proceedings.

2. The court *a quo* grossly misdirected itself in finding, contrary to and in spite of the evidence, that appellant is in the habit of vaping of illicit substances around the child and that she admits to doing so.
3. Having found that respondent has exposed the minor child to vaping of illicit substances, the court *a quo* erred in not finding that by that conduct he is a danger to the health and wellbeing of the child such as to warrant a variation of his access rights to supervised access.
4. The court *a quo* erred in coming to the conclusion that appellant and respondent are in equal guilt in circumstances where it did not find that appellant - as it did respondent - had made the child partake in the harmful act of consumption of illicit substances.
5. In all the circumstances the court *a quo* grossly misdirected in not coming to the only conclusion compelled by the evidence, namely that the best interests of the children are served through respondent enjoying supervised access and appellant being licenced to travel with the children without the need, for respondent`s consent."

A reading of the above grounds of appeal reveals that the court *a quo* was invited to decide essentially three issues, namely:

1. Whether the Children`s Court erred in concluding that the respondent was into vaping illicit substances around the minor children without an inquiry having been made about her.

2. Whether the Children`s Court erred in failing to find that the appellant`s conduct posed a danger to the health and wellbeing of the children.

3. Whether the Children`s Court erred in not granting an order for the variation of the access rights.

Following submissions by counsel on the issues, the court *a quo* drew the conclusion that the appellant had not challenged the factual finding made by the Children`s Court that he had exposed the minor child to vaping. It found that although the appellant sought to argue that vaping is not illegal, exposing the child to vaping/smoking posed a danger to the minor child.

In the court *a quo`s* view the factual finding by the Children`s Court that the appellant gave the child vape and his failure to give an assurance that he would not do it again in future meant that the minor child had to be protected from the harmful practice. It then concluded that the appellant posed a danger to the life, health and morals of the child and took the view that the appellant`s access to the child had to be supervised.

The court *a quo* concluded that the Magistrate erred in declining to order supervised access notwithstanding the finding that the elder child was exposed to harmful practice. In its view, once it was found that the elder child was exposed it followed that the finding also extended to the younger child who also had to be accorded similar protection. It allowed the appeal, setting aside the judgment of the Children`s Court and substituting an order granting the application for variation. It directed that the appellant`s access to the children be supervised.

In its own words, the court *a quo* stated at pp 4-5 of the judgment:

> "The respondent did not challenge the factual finding by the court *a quo* that he indeed exposed the child to vaping. He only sought to dispute it in argument by counsel at the hearing. His defence that vaping is not illegal shows that he does not see anything wrong with teaching a minor child vaping. Vaping is essentially an electronic cigarette and exposing a child of that age to it is certainly not in his best interests. It may not be illegal if partaken by an adult but it is a danger to the interest of a minor child to expose him to smoking at that age. The fact that the child said it only happened (thrice) in August 2024 does not make the practice good for a minor child. Further, it is not without significance that the respondent did not undertake not to do it again, because he denied ever doing it. In light of the factual finding that he actually gave the child the vapour, his failure to give an assurance that he will not repeat it in future justifies protection of the minor children from the harmful practice.
>
> In the circumstances, it is this Court`s conclusion that the plaintiff (*sic*) poses danger to the life, health or morals of the minor child and as such, his access to the minor children ought to be supervised. The court *a quo* therefore fell into error when it declined to order supervised access notwithstanding its finding that the elder child was exposed to the harmful practice. The fact that the appellant also partakes of the vapour is irrelevant as no finding was made that she exposed the children to the practice. The danger to the interests

of the children does not arise from the fact of the respondent or the appellant smoking the electronic cigarette, but from giving the children access to it.

As regards the younger child, once this Court finds that exposure of the elder child to vaping was a danger to the child, that finding extends to the younger child. The fact that the younger child was not found vaping does not mean that she is not exposed to the practice. She needs protection as well. Given this conclusion, it is unnecessary to determine the disputed fact of the younger child being unkempt each time that she returned from being with the respondent."

The court *a quo* proceeded to issue the following order:

"In the result **IT IS ORDERED THAT:**

1. The appeal succeeds with costs.

2. The judgment of the Magistrates Court sitting at Harare in case Harare-CCC 1075/23 be and is set aside and substituted with the following:

   '1. The application for variation of the order granted by the court on 17 December 2023 be and is hereby granted with no order as to costs.

   2. Consequently, the above order be and is hereby varied so that it reads as follows:

      (a) The applicant is awarded the custody of the minor children namely Mandla Sizwe Chingwena born on 06 June 2009 and Naledi Aliah Chingwena born on 19 July 2016.

      (b) The respondent is granted access to the minor children on alternate weekends that is on Saturdays and Sundays from 09:00 hours to 18:00 hours on each day.

      (c) The respondent`s access to the children shall be supervised by the applicant in that the respondent shall only have access to and be with the children in the continual presence of the applicant or her nominee.

   (d) Each party shall bear its costs.'"

The respondent`s victory on appeal became the appellant`s source of agitation.

THE APPEAL TO THIS COURT

Being grievously hurt by the judgment of the court *a quo*, the appellant lodged the present appeal to this Court on the following six grounds of appeal:

"1. The court *a quo* erred in resolving the matter on an incorrect factual basis as the allegation that the appellant had taught the minor child vaping had, contrary to the premise on which it proceeded been disputed in the affidavit and objective evidence assigned in aid of such disputation.

2. The court *a quo* erred at any rate in making a finding as to the veracity of the allegation had (sic) taught the minor child the practice of vaping the issue having been fully argued before it has required by law and respondent`s main contention having been that there had been no full inquiry before the Children`s Court.

3. The court *a quo* erred in not concluding that the vaping allegations were false, had been concocted by the respondent who does not wish for the children to have a normal relationship with their father and who had consistently done everything to ensure that such a relationship does not take root including blocking all attempts to have the issue inquired into and addressed.

4. The court *a quo* erred in *mero motu* extending the false vaping allegations to the younger of the minor children when that was never the case placed before it by respondent and so erred in deciding its own case and not that of the parties and in doing so without hearing them on it.

4. The court *a quo* erred in resolving the matter before it on a technical basis and in not considering the best interests of the minor children involved as mandated by law.

5. The court *a quo* erred in issuing an impracticable order which presents a danger to the interest of the minor children in its implementation and is a sure source of conflict and so erred in not explaining how its order would be given practical effect.

Prior to the hearing of the appeal, the appellant filed a notice of amendment in terms of r 48 of the Supreme Court Rules, 2025 indicating that he intended to amend his grounds of appeal by the introduction of a new ground of appeal and also to amend the relief sought in the notice of appeal. The additional ground reads:

"The Children`s Court having found respondent in contempt of court for not complying with its two judgments and such order of contempt of court not having been disturbed, the court *a quo* erred in not taking respondent`s contempt into account in its determination of

the matter and also erred in making an order for supervised access in the face of such contempt."

Regarding the amendment to the relief, the appellant intends to introduce an alternative prayer for the remittal of the matter to the court *a quo* for a hearing *de novo* together with the respondent`s appeal against the Magistrates Court judgment holding her to be in contempt of court. Although he had given notice that an amendment would be sought at the hearing of the appeal, Mr *Mpofu,* for the appellant, went straight to submissions on the main appeal. The court had to inquire from counsel if the amendment had been abandoned, to which he responded in the negative.

When Mr *Mpofu* eventually sought to amend the notice of appeal, he submitted that the amendment was premised on the fact that there is a judgment of the Magistrates Court which found the respondent in contempt of court for failure to afford the appellant access to the children in terms of the custody and access judgment. The judgment in question was appealed and the court *a quo* is yet to determine that appeal. In his view, the amendment should be allowed in order to introduce that aspect. Should the new ground be upheld, its effect would be a remittal of the present matter to the court *a quo* for determination together with the respondent`s appeal against the contempt of court judgment.

Mr *Nkomo*, for the respondent, vehemently opposed the application for amendment. He submitted that the court *a quo* is yet to hear the appeal against the contempt of court judgment because the parties agreed to defer the matter, which they considered to be less important, until after the present matter was finalized. Mr *Nkomo* took the view that there was no basis, either in

law or in the agreement of the parties, to seek to introduce the issue of contempt of court in these proceedings when it was not placed before the court *a quo*.

The Court will not be detained by the application for amendment, which, for all intents and purposes, was half-heartedly prosecuted given that counsel for the appellant did not even prioritize it. While r 48 of the Supreme Court Rules, 2025 provides that the Court may, upon application by notice or upon oral application by Counsel, allow an amendment of the grounds of appeal or of any pleadings or other document, there are established common law principles that regulate the grant of an amendment.

The general rule is that amendments will be allowed at any stage before judgment provided they do not cause prejudice or injustice to the other party that cannot be cured by an order of costs. In addition, it is trite that the issue sought to be addressed in the amendment must have been pleaded. Where the amendment is sought in bad faith or will cause incurable prejudice to the other party, its will be refused.

In this case the appeal is determined within the four corners of the appeal record. There is no record of the contempt of court proceedings before the court. It was not before the court *a quo* when it rendered the judgment sought to be impugned. There was no attempt by any of the parties to consolidate the two matters. In fact, the primary court deliberately chose to deal with the matters separately and by two different magistrates. It was not challenged in that aspect.

There is no doubt that the proposed amendment is not only unsustainable at law, it will cause prejudice to the respondent given that the issue of contempt was not addressed at all *a*

quo. Accordingly, the application to amend the grounds of appeal and the prayer is dismissed. From the original grounds of appeal, the following issues commend themselves for resolution in this appeal:

1. Whether the court *a quo* erred in finding that the appellant exposed the elder child to harmful substances.
2. Whether the court *a quo* erred in extending supervised access to the younger child.
3. Whether the court *a quo* issued an impractical order that was not in the best interests of the minor children.

Mr *Mpofu,* for the appellant, submitted that the court *a quo* misdirected itself by making findings which did not arise from the arguments that were placed before it. In this regard, counsel made reference to the court *a quo`s* findings that the appellant did not challenge the factual finding made by the primary court that he exposed the child to vaping. Counsel also made reference to the finding that the appellant did not undertake not to expose the child in a similar manner in the future and that he is a danger to the life, health or morals of the minor children. Counsel also questioned the basis for extending protection to the younger child in respect of whom there were no complaints.

It was strongly argued on behalf of the appellant that while there is evidence on record from the then 15 year old boy that his father had given him drugs in August 2024, the appellant could not contest that evidence in any way, neither could he seek to have it corrected, because ultimately the judgment of the primary court was in his favour. Reliance was placed on the cases of *Blue Ribbon Foods Ltd* v *Dube & Anor* 1993 (2) ZLR 146 (S) at 148E; *Econet Wireless (Pvt) Ltd* v *Trustco Mobile (Pty) Ltd & Anor* 2013 (2) ZLR 309 (S).

Relying on the authority of *Chidyausiku* v *Nyakabambo* 1987 (2) ZLR 119 (S) counsel argued that the appellant was at liberty, while defending the judgment of the primary court, to challenge the finding that he had exposed the child to vaping. In his view, the court *a quo,* sitting as the upper guardian of minor children, was not "hamstrung by formality" and should have rejected the child`s evidence notwithstanding that it was not challenged.

The Court desired to know from Mr *Mpofu* why the appellant allowed the evidence of the minor child to remain unchallenged either by way of a review or an application before the court *a quo* to lead contrary evidence on appeal. His view was that the manner in which the trial Magistrate took the evidence of the child was irregular and as such it was enough for the appellant to point this out to the court *a quo* together with other factors which pointed to the fact that he did not expose the child to vaping. Counsel argued that it was the respondent who influenced the child to give false evidence because she was bent on destroying the appellant`s parental relationship with the children.

Mr *Mpofu* emphasized, relying on correspondence between the parties` legal representatives, that the appellant disputed the allegations levelled against him and showed that the boy`s vaping was taking place at the respondent`s house and not his house. According to counsel, the appellant argued before the court *a quo* that the respondent was making false claims that the children did not want to spend time with their father in order to deny him access but the court *a quo* failed to pronounce itself on the issue.

It was further submitted on behalf of the appellant that he has never been afforded an opportunity to be heard in rebuttal of the evidence given irregularly by the child at the first

instance. Mr *Mpofu* submitted that it was a misdirection on the part of the court *a quo* to *mero motu* extend the allegations of vaping to the younger child because no one asked for such relief and the appellant was not heard on that issue. In his view, this violated the *audi alteram partem rule.*

Counsel rounded off by urging the court to allow the appeal and remit the matter to the court *a quo* for a full inquiry in light of the alleged impropriety of the proceedings in both the court *a quo* and the primary court.

Per contra, Mr *Nkomo*, who appeared for the respondent, defended the judgment of the court a *quo*. He took off from the premise that the court *a quo* dealt with the appeal before it as the upper guardian of minor children as provided for in s 81(2) and (3) of the Constitution. As such, it was guided by the best interests of the children to ensure that it gave adequate protection to them regardless of the selfish interests of their parents.

Mr *Nkomo* submitted that, faced with the evidence of the child that his father introduced him to drugs, as upper guardian the court *a quo* had no option but to protect the children by issuing an order for supervised access by the father even for the younger child. He queried why the appellant chose to leave the evidence of the child in the record while expecting the court *a quo* to turn a blind eye to it. In his view, even though the order of the primary court was in the appellant`s favour, it was incumbent upon him to seek a correction of the record by way of review or by leading evidence on appeal.

Regarding the appellant`s challenge of the order allowing the respondent to appoint a nominee to supervise the appellant`s access to the children in her absence, it was submitted on

behalf of the respondent that the argument was improperly being raised for the first time in this appeal. According to the respondent, the appellant said nothing about the relief when it was raised in the application made to the primary court. He said nothing about it when it was sought before the court *a quo*. The respondent's position is that this is a question of fact unlike one of law which can be raised for the first time on appeal and raising it is incompetent.

In addition to that, it was submitted, drawing an analogy from the rights conferred on a sole custodian parent by s 4 (3) as read with s 4 (5) (a) of the Guardianship of Minors Act to vest the custody rights in any person of his or her choosing, that the respondent, as the custodian parent is entitled to do the same. She can nominate someone of her choosing to supervise the appellant`s exercise of his access rights.

THE LAW

It is necessary to put the law on custody, guardianship and access to minor children in its proper historical context. Historically, under Roman Dutch law, children born out of wedlock belonged to the mother who enjoyed sole guardianship and control of the children. Courts of law could not lightly interfere with the rights of the mother and would only do so where it was shown that the mother was improperly exercising those rights or was exposing the children to harm and prejudice. The father had no automatic right over children born out of wedlock.

The earlier legal position was succinctly captured in the case of *Cruth* v *Manuel* 1999 (1) ZLR 7 (S), a case in which the mother of a child born out of wedlock had allowed the father only limited access to his child. The father had applied for an order allowing him greater access rights to the child. When the High Court dismissed the application, the father appealed to this Court. The majority judgment of the Court dismissed the appeal on the basis that under the

common law all rights in respect of a child born out of wedlock were vested in the mother who had the same rights as those of the parent of a legitimate child.

The Court reasoned that the father had no rights at all in relation to the child and that such a father was in the same position as a third party in relation to the child. The Court was unwilling to elevate the status of the father to that of a spouse in a divorce as it took the view that it would allow unwarranted interference in the mother`s rights over the child.

It is the dissenting judgment of SANDURA JA which was for the future. The learned judge of appeal held that although at common law the father of a child born out of wedlock had no inherent right of custody or access, the difference between the two fathers (of a child born out of wedlock and one born in a marriage) is not of real substance in practice. In his view, in modern law, whether or not access to a minor child is granted to its non-custodian father depended on consideration of the child`s welfare and that the litigation really involves a judicial investigation in which the court can call evidence *mero motu* and the proceedings are not adversarial in nature.

The take-home from that judgment is that the Court recognized that the law could be changed by the legislature. At p 16 C of the concurring judgment of EBRAHIM JA, it was stated:

> "If the law is to be changed with regard to such fathers, the decision must be that of the legislature, not the court."

Indeed, the legislature did intervene through the introduction of two key provisions in ss 56 and 81 of the Constitution of Zimbabwe, 2013. Now the law governing children and their parents is tilted in favour of the children because of their vulnerability as human beings who are

in the formative stage of their development. They depend on adults for their wellbeing, safety and security.

The starting point is s 56 (1) and (3) of the Constitution which reads:

> "(1) All persons are equal before the law and have rights to equal protection and benefits of the law.
>
> (2) …
>
> (3) Every person has the right not to be treated in an unfairly discriminatory manner on such grounds as their nationality, race, colour, tribe, place of birth, social origin, language, class, religious belief, political affiliation, opinion, custom, culture, sex, gender, marital status, age, pregnancy, disability or economic or social status, or whether they were born in or out of wedlock." (The underlining is mine).

The above provision completely removed discrimination on the basis, *inter alia*, of marital status and, more importantly, on whether one is born in or out of wedlock. All persons are equal before the law. In terms of s 81 (1) (a) of the Constitution:

> "(1) Every child, that is to say every boy and girl under the age of eighteen years has a right -
>
> (a) to equal treatment before the law including the right to be heard."

Section 81(2) and (3) of the Constitution provide:

> "(2) A child's best interests are paramount in every matter concerning the child.
>
> (3) Children are entitled to adequate protection by the courts in particular by the High Court as their upper guardian."

The fundamental rights of children enshrined in the Constitution led to wholesale amendments of the Children's Act, [*Chapter 5:06*] through Act 8 of 2023, which was gazetted and came into effect on 19 July 2023, in order to give effect to those fundamental rights. Significantly,

the amendment also tinkered with s 5 by the deletion of the phrase "young person" and its substitution with the word "child" and it reads, in relevant part, thus:

> "5. **Procedure of Children's Courts**
>
> (1) A children's court shall not be bound by any rules relating to civil or criminal proceedings and, in any case not provided for in this Act or in rules, the proceedings of a children's court shall be conducted in such manner as to the officer presiding over the children's court seems best fitted to do substantial justice.
>
> (2) The officer presiding over a children's court may in his discretion permit evidence to be given to the court by way of affidavit or report and may permit the child to express his views or opinion on the matter before the children's court."
>
> Provided that the officer presiding over the children's court shall, upon the request by or on behalf of any person who in his opinion is a properly interested person, require the appearance before the court of the maker of such affidavit or report and shall afford that person an opportunity to cross examine the maker of the affidavit or report upon oath."

Section 7 (1) of the Children's Act criminalizes, *inter alia*, exposing a child in a manner likely to cause unnecessary suffering or to injure or detrimentally affect the child's health or morals or any part or function of the child's mind or body by a parent or guardian.

These provisions have already attracted the attention of this Court which has underscored the centrality of the best interests of the minor children in resolving litigation brought to court by parents who, at times may be driven by self-interests, to weaponize the children. In *Mackintosh* v *Mackintosh* 2018 (1) ZLR 636 (S), a case which involved an application for an upward variation of a maintenance order regulated by the terms of a consent paper signed by the parties and confirmed by the court at divorce, the court *a quo* had dismissed the application on the basis that the application for variation was attempting to revisit a settlement agreement the parties had entered into at divorce. For that reason, it took the view that no good cause for a variation had been shown.

Commenting on the failure by the court *a quo* to address the best interests of the minor children before dismissing the application for variation, GARWE JA, as he then was, writing for the Court, stated at p 642 A-C paras 33 and 34:

> "[33] A court, such as the court *a quo*, must always keep in mind that the interests of the minor children are always paramount. In considering those interests, the court should not allow itself to be misled by the appearances that the parties give. It must, in addition to any evidence given, be guided by its own experiences and sense of what is fair. It must take a pragmatic view of the means of the respondent- *Lindsay* v *Lindsay* 1993 (1) ZLR 195 (S), 199 A-B, 202 B.
>
> [34] The need to have due regard to the best interests of the minor children has been part of our law for some time now. Indeed, with the advent of the new Constitution, s 81 (2) thereof has codified this position and provides that in every matter concerning a child, it is the child's best interests that are paramount and that minor children are entitled to protection, particularly by the High Court as the upper guardian of the rights of children."

The Court went on, in making the point that the children's interests are a primary consideration, to cite with approval what was stated by the UN High Commissioner for Refugees in the UNHCR Guidelines on Determining the Best Interests of the Child, May 2008:

> "The term 'best interests' broadly describes the well-being of a child. Such well-being is determined by a variety of individual circumstances, such as the age, the level of maturity of the child, the presence or absence of parents, the child's environment and experiences… neither offers a precise definition, nor explicitly outlines common factors of the best interests of the child, but stipulates that … the best interests must be a primary (but not the sole) consideration for all other actions affecting children, whether undertaken by public or private social welfare institutions, courts of law, administrative authorities or legislative bodies (Article 3)."

See also *S* v *M* (*Centre for Child Law as Amicus curiae*) 2008 (3) SA 232 (CC).

In that case, of its own volition, the Court proceeded to issue an order for interim maintenance for the children as it remitted the matter to the court *a quo* for full determination. It

did so upon a consideration that the children's interests were paramount and had to be taken care of pending resolution of the dispute.

The case of *Sadiqi* v *Muteswa* 2020 (1) ZLR 704 (H) was a direct challenge to the common law position that the mother of a child born out of wedlock has exclusive rights over the child. The court took the view that the adoption of the best interests of the child as the paramount consideration in all matters concerning, *inter alia*, access had changed the approach to these rights. At 711 F ZHOU J, as he then was, stated:

> "It is unfair discrimination to deny a child the benefits of associating with his or her biological father, which is an aspect of parental care, on the mere ground of the marital status of the parents at the time that he or she was born. The principle of the common law in this respect is inconsistent with s 81 (1) (a) and s 56 (1) and (3) of the Constitution of Zimbabwe."

In *Coumbis* v *Coumbis & Anor* 2021 (2) ZLR 308 (S), at the divorce trial in which the custody of a perpetual minor child was contested, the court *a quo* interviewed the minor in chambers. It found that the child was closer to the father and took into account that the two had been staying together after the spouses separated and granted custody to him. On appeal to this Court one of the key issues was the custody of the perpetual minor who had been removed from this jurisdiction by the father before the judgment of the court *a quo* was delivered. The mother had raised the issue of contempt of court arising from the removal of the child which denied her access to the child and that the award of custody to the father was influenced by the alienation of the perpetual minor against the mother. She prayed that custody be awarded to her.

After making reference to s 81 (2) of the Constitution and the case of *Mackintosh*, *supra*, and barring the father from being heard on the ground of the "dirty hands" principle – he had defied a court order by removing the perpetual minor from the court's jurisdiction - the court

was guided by what was in the minor's best interests in determining that the father was better placed to serve the minor's interests.

In doing so, the court followed the guidelines to be used in determining the best interests of the child set out in *McCall* v *McCall* 1994 (3) SA 201 (C) at 204-205. What was found to be in favour of the father was that the perpetual minor had a strained relationship with his mother, he was male and relied on the father and twin brother to dress up, the father had a good relationship with the minor and also the child preferred to be with his father. At 320 E, the Court said:

> "The court interviewed the perpetual minor after which it granted custody to the first respondent. This indicates the minor's preferences as a consideration to his best interests."

Clearly the resolution of a dispute over children by the court *a quo* involves the exercise of a very wide discretion which is judicially exercised having regard, essentially, to what is in the best interests of the children in question. Where the court *a quo* has done so, an appellate court will only interfere with that discretion on principles which have long been settled in this jurisdiction.

The remarks of this Court in *Barros & Anor* v *Chimpondah* 1999 (1) ZLR 58 (S) at 62 F-G, 63A, which have been hallowed by repetition in a number of other authorities, are apposite:

> "The attack upon the determination of the learned judge that there were no special circumstances for preferring the second purchaser above the first - one which clearly involved the exercise of a judicial discretion - may only be interfered with on limited grounds. See *Farmers' Co-operative Society (Reg)* v *Berry* 1912 AD 343 at 350. These grounds are firmly entrenched. It is not enough that the appellate court considers that if it had been in the position of the primary court, it would have taken a different course. It must appear that some error has been made in exercising the discretion. If the primary court acts upon a wrong principle, if it allows extraneous or irrelevant matters to guide or

> affect it, if it mistakes the facts, if it does not take into account (some) relevant consideration, then its determination should be reviewed and the appellate court may exercise its own discretion in substitution, provided always (it) has the materials for doing so. In short, this Court is not imbued with the same broad discretion as was enjoyed by the trial court."

It is only where the threshold set out above has been met that the appellate court will interfere with the exercise of discretion.

APPLICATION

The court *a quo* did not deny the appellant access to his children. It took the view that, on the basis of the evidence led before the primary court, mainly the evidence of the elder child that his father exposed him to dangerous substances, a case was made for the appellant's exercise of his right of access to the children to be supervised by their mother or her nominee. The condition imposed by the court *a quo* for supervised access must have infinitely hurt the appellant's feelings because it is the only issue that is sought to be impugned on appeal.

As a result of that condition, the appellant has gone quite some distance in this appeal to the extent of even seeking to tie the present proceedings to proceedings relating to contempt of court brought against the respondent which were dealt with separately and are pending on a separate appeal record. He also seeks, in the alternative, the setting aside of the judgment *a quo* and a remittal of the matter for a fresh hearing. Presumably he hopes, by that, to obliterate the unfavorable evidence led against him which remains etched at the very heart of the record of proceedings.

A lot of time was spent by counsel seeking to discredit the evidence given by the elder child that the appellant gave him drugs. This evidence was given during the interview

conducted by the presiding magistrate. Counsel asserted that the interview was "an irregular interview" during which she was suggestive, asked questions of a leading nature and did not warn herself of the dangers of the mother having influenced the then 15 years old on what to say. It was however suggested, in a contradictory manner, that the magistrate was however correct in ignoring the child's evidence and granting access to the appellant.

Section 5 (1) of the Children's Act [*Chapter 5:06*], which regulates the proceedings in the primary court, is very clear that the court is not bound by any rules relating to civil or criminal proceedings. It makes it clear that the proceedings in that court are conducted in a manner which the presiding magistrate considers best fitted for the attainment of substantial justice. Apart from that, s 5 (2) of the Act reposes on the presiding magistrate the power to permit the affected child to express his or her view or opinion on the matter before that court.

In the circumstances, it was within the power of the primary court to summon and interview the affected child the way it did, to interview the child in chambers in the absence of the parties and their legal representatives and to have regard to the views and opinion expressed by the child during that interview. Indeed, the procedure adopted by the magistrate in this case is the same as that adopted by the court *a quo* in *Coumbis*, *supra*, in which the presiding judge interviewed the affected perpetual minor in chambers and took his opinion into account in awarding custody to the father who was closer to the child.

As shown above, this Court approved of that procedure on appeal. In doing so, the Court underscored the importance of the minor child's preference in considering what is in the child's best interests. Clearly therefore, the primary court cannot be faulted for the procedure it followed in conducting the interview. However, having done so, certain consequences flowed

from the interview. It yielded evidence tending to show that the appellant had the potential of causing harm to the children. In the best interests of the children, the court *a quo* could not, faced with a "poisoned chalice" in its hands, pretend it did not exist or try to strike a balance between the parties using an imagined fact that the respondent also posed the same measure of harm to the children because she did not dispute an allegation that she also partakes in vaping.

I say imagined because, even assuming that the respondent also partakes in vaping, there was no shred of evidence that she gave the children the harmful substance. There was only evidence that the appellant is the one who did so. It is that misdirection on the part of the primary court which was the subject of the appeal before the court *a quo*. The court *a quo* had a duty to correct it.

It should be borne in mind, as already shown above, that in relating to the appeal before it, the court *a quo* was obligated by s 81 (2) and (3) of the Constitution to consider that the children's interests were paramount and that the children are entitled to "adequate protection by the courts" especially by the court *a quo* which is their upper guardian. The importance of the role of the court *a quo* in the whole matrix of the dispute over children was massive. The court is the last bastion in the defence and protection of minor children, never mind what their parents, whether individually or collectively, wanted.

In fulfilling its mandate, the court *a quo* was bound by the authority of *Mackintosh, supra*, in considering what was in the best interests of the children, not to be misled by what the parties threw at it, but in addition, to be guided by its own experience and sense of fairness. In light of the evidence properly gathered by the primary court in terms of the Children's Act from the elder child, which that court ignored when it dismissed the respondent's application, and in the

exercise of its onerous responsibility and discretion as the upper guardian of minor children by constitutional decree, the court *a quo* drew the conclusion that the appellant "poses danger to the life, health or morals of the minor child."

It reasoned, while not denying the appellant access, that its exercise should be supervised. My view is that, as long as the evidence of the elder child remained in the record unscathed, the court *a quo*'s hands were tied. It could not, again as did the primary court, ignore that evidence which tended to show that the appellant exposed one of the children to harmful substances. It could not, again like what the primary court did, ignore the preferences and views of the minor child elicited during an interview conducted in accordance with the law, that the child was not averse to his father having supervised access to him. It cannot be faulted for making the findings it made and ordering supervised access.

The question whether that could be extended to the younger child who was not similarly exposed is one which should be considered having regard to the responsibilities thrust upon the court *a quo* by the Constitution and the authorities I have adverted to above. As I have said, s 81 (3) of the Constitution imposes a duty on the court *a quo,* which it discharges as upper guardian of children, to ensure that children are adequately protected.

I do not agree with Mr *Mpofu* that the appellant did not have an opportunity to challenge the evidence of the child because the judgment of the primary court was in his favour. This issue should be understood in its proper context. Well before the proceedings were completed, counsel for the appellant requested and was given the record of the evidence against him. He elected not to challenge that evidence. Instead he sought to argue that vaping does not involve the taking of drugs but was just smoking which is not illegal notwithstanding that s 5 (8) of the

Children's Act entitled him to apply to lead evidence. Even after the primary court delivered judgment in his favour and the matter went on appeal, the appellant was happy to leave that evidence unchallenged. No attempt was made to seek leave to lead contrary evidence on appeal. It was staggering, if not arrogant, for the appellant to do nothing about that damning evidence

I should add that, notwithstanding the protestations of the parents, the court *a quo* was enjoined, on the authority of *Macintosh*, *supra*, to look beyond that and summon its own experiences and sense of what is fair where a parent has been shown to have once in a while handed over to his child a harmful substance in the name of vaping. It is not beyond human experience that it may not be beyond him to do the same to the girl as well. Therefore, in the discharge of its mandate, the court *a quo* was within its rights and obligations to protect the younger child from any perceived future harm. It therefore cannot be faulted for extending protection to the girl.

I must mention that, I also do not agree with Mr *Mpofu's* submission that, by extending supervised access to the younger child, the court *a quo* acted *mero motu* and of its own accord. The application before the primary court was for an order for supervised access in respect of both children. This can be gleaned from the respondent's founding affidavit and from para 3 of the draft order annexed to it. On appeal, the court *a quo* was therefore correct to deal with that aspect as it did especially as it was also motivated not only in the relief sought on appeal before the court *a quo* but also in the respondent's heads of argument.

This brings me finally to the issue of the appellant's submission that granting an order directing the appellant to exercise his right of access in the presence of the respondent or her nominee is impractical in that it leaves the respondent to nominate even her boyfriend to supervise

access. It is important to note that the court *a quo* merely allowed the appeal and substituted an order which the primary court would have granted had it allowed the application.

Significantly, the draft order attached to the application for variation in the primary court had that provision for a nominee to be appointed by the respondent in her absence. The appellant did not contest that prayer but got busy with other issues. The notice of appeal to the court *a quo* also contained the same draft as a substitution order sought on appeal. Again, the appellant preoccupied himself with other things and did not even begin to contest it.

In resisting the submission made on behalf of the appellant on that aspect, it was argued that it was improper for the appellant to introduce that issue for the first time on appeal. In the respondent's view, what arises from that argument is an issue of fact and not one of law which can be raised at any time even on appeal. I agree.

The court *a quo* was not addressed by counsel on that issue either in heads of argument or in oral submissions at the hearing. It did not pronounce itself at all on that aspect having only granted relief based on the uncontested prayer of the respondent on that aspect. The question which arises is whether it is competent to seek to impugn the judgment of the court *a quo* on the basis of an issue which it was not addressed on and did not pronounce on it. I agree with counsel for the respondent that the appellant cannot contest the judgment *a quo* on a basis which he did not ask the court *a quo* to consider as the court *a quo* could not have erred in respect of an issue that was not contested before it and which it was not requested to determine.

The view is expressed by the Constitutional Court in *Ruvinga* v *Portcullis (Pvt) Ltd* CCZ 21/17 at pp 3-4:

"It is not open to a litigant to change midstream the jurisdictional basis upon which he or she approaches the court. Even if it was legally permissible to change the nature of the proceedings as vainly attempted by the applicant, this Court would, in any event, be handicapped to deal with the matter as an appeal for the reason that no grounds have been raised pointing to the alleged error or misdirection of the court *a quo* by reason of which this Court would interfere with the lower court's order of costs.

The applicant's request that his matter be treated as an appeal is further made untenable by the fact that the constitutional issue purported to be raised before this Court was not raised before the court *a quo*. An appeal by definition relates to a request being made to a higher tribunal or court for the alteration of the decision of a lower one. *In casu* the court *a quo* was not invited to and neither did it make a decision on the issue now sought to be determined by this Court." (The underlining is mine)

The same sentiments were expressed by this Court in *Tsvangirai & Anor* v *Registrar General of Elections* SC 93/02 at pp 24-26:

"The argument made for the appellant that the rights under the Access to Information and Protection of Privacy Act arises from the rights constitutionally guaranteed in s 20 (1) of the Constitution, while ingenious, does not, in my view, cure the defect, which is his failure to place before the High Court a proper application for relief under the Access to Information and Protection of the Privacy Act. The result of this failure is that the court *a quo* did not consider that submission, whatever its merits or demerits … the court *a quo* cannot be criticised, as the appellant does in his grounds of appeal and heads of argument, for not addressing its mind to an issue that was not raised before it. Since that argument was not placed before the court *a quo*, and therefore not dealt with, the ground of appeal that charges that the learned judge *a quo* erred "in failing to appreciate that the appellants are in any event entitled to copies of the voters' roll in an electronic format in terms of s 5, as read with s 8 of the Access to Information and Protection of Privacy Act [*Chapter 10:27*] has neither foundation nor merit.

It hardly needs mentioning that the matter in the court *a quo* did not fall to be determined on unstated entitlements… To now call upon this Court, as the appellant does, to consider this appeal on the basis of information and arguments not placed before, and therefore not considered by, the court *a quo* is both unprocedural and improper." (The underlining is mine)

See also *Mudyavanhu* v *Saruchera* SC 75/17 at p 6.

The averment and argument that allowing the respondent to nominate someone to supervise the appellant's exercise of his rights of access is impractical were not placed before the

primary court and the court *a quo*. The latter's judgment cannot be impugned on the basis of that which was not before it. Even more, the issue of the selection of the nominee was not pleaded anywhere.

DISPOSITION

There was undisturbed evidence in the record of appeal before the court *a quo*, which evidence was lawfully gathered by the Children's Court, to the effect that the appellant administered harmful substances on one of the minor children. The court *a quo* was entitled, as it did, to have regard to that evidence in considering what was in the best interests of the children.

As upper guardian of the children, the court *a quo* was correct, in light of that evidence, to order supervised access. It was within its discretion, which discretion it exercised judiciously in the circumstances, to extend protection to the younger child as well. No foundation has been laid for the discretion to be interfered with on appeal.

The matter is resolved. The appeal is without merit. It ought to fail. It is conventional in this jurisdiction, for costs to be awarded in favour of the successful party. I see no reason why that should not be followed in the present case.

In the result, it be and is hereby ordered that:

"The appeal is dismissed with costs."

MWAYERA JA : I agree

MAFUSIRE AJA : I agree

Atherstone & Cook, appellant's legal practitioners.

Mhishi Nkomo Legal Practice, respondent's legal practitioners.